

Terms Of Service

Kohler India Corporation Private Limited (“Kohler India” or “Company”) is inter alia engaged in the business of manufacturing and trading of sanitary products, ceramic products, plumbing fixtures and fittings of metals, furniture and accessories etc. It presently operates and functions under the domain Kohler Co. through its website kohler.co.in. Presently, in order to venture into the retail segment, Kohler India is launching its D2C portal in order to effectively carry out the sale of toilet fittings products and other accessories.

Background

Kohler India Corporation Private Limited (“Kohler India” or “Company”) is inter alia engaged in the business of manufacturing and trading of sanitary products, ceramic products, plumbing fixtures and fittings of metals, furniture and accessories etc. It presently operates and functions under the domain Kohler Co. through its website kohler.co.in. Kohler's website is located at www.Kohler.com, and all associated sites linked to www.Kohler.com by Kohler, its subsidiaries and affiliates, including Kohler sites around the world (collectively, the "Site")

Presently, in order to venture into the retail segment, Kohler India is launching its D2C portal in order to effectively carry out the sale of Kitchen and Bath Products and Accessories.

Note:

1) Please print a copy of this Agreement for your records and read terms and condition and privacy policies of this Agreement before

Kohler Concierge



registering your account and/or providing any additional information to the Website.

2) By accessing the Website, you consent and acknowledge to have understood and agreed to be bound by the terms and conditions of this Agreement (mentioned hereunder) and Kohler's Code of Conduct. Privacy Policy, Shipping Policy, Refund Policy, Installation Policy and Grievance Policy shall form part and parcel of these Terms and Conditions. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors and assigns. This provision shall survive termination of this Agreement.

3) Use of www.kohler.co.in is available only to persons who can form legally binding contracts under the Indian Contract Act, of 1872. Persons who are "incompetent to contract" within the meaning of the Indian Contract Act, 1872 including minors, un-discharged insolvents etc. are not eligible to use www.kohler.co.in.

4) Indian law applies to the sales contract, to the exclusion of the United Nations Convention on Contracts for the International Sale of Goods (CISG).

5) By impliedly or expressly accepting these Terms, you also accept and agree to be bound by the Privacy Policy available at <https://www.kohler.com/en/legal/privacy-policy>, which may be amended from time to time. Our Privacy Policy outlines how is your information processed amongst other things.

6) The terms and conditions are subject to change by Kohler India at any time, effective upon posting on the www.kohler.co.in, and your use of the Service after such posting will constitute acceptance by you of such changes. Such change shall be notified by posting an updated version of the Agreement on this page.

7) This document and the privacy policy is an electronic record in terms of the Information Technology Act, 2000 as applicable and the amended provisions pertaining to electronic



records in various statutes as amended by the Information Technology Act, 2000. These 'Terms of Use' constitute an electronic record within the meaning of the applicable law. This electronic record is generated by a computer system and does not require any physical or digital signatures.

8) IF YOU DO NOT AGREE TO BE BOUND BY THIS AGREEMENT, DO NOT USE THE SITE OR THE SERVICES.

1. Applicability:

The terms and conditions narrated below governs the use of the Website and content thereof including text, data, information, and photographs and apply to the sale of the products by Kohler India through its website (www.kohler.co.in) (hereinafter referred to as the "the Website") unless omitted and/or superseded by a written instrument duly accepted by Kohler India. The provision of making available the products for sale through the website shall be collectively referred to as "the Services".

2. Your Account:

If you use the www.kohler.co.in, you are responsible for maintaining the confidentiality of your account and password and for restricting access to your computer to prevent unauthorised access to your account. You agree to accept responsibility for all activities that occur under your account or password. You should take all necessary steps to ensure that the password is kept confidential and secure and should inform us immediately if you have any reason to believe that your password has become known to anyone else, or if the password is being, or is likely to be, used in an unauthorised manner. Please ensure that the details you provide us with are correct and complete and inform us immediately of any changes to the information that you provided when registering. You can access and update much of the information you provided us with in the Your Account Section of the www.kohler.co.in.

3. Collection of Information and Reason for such collection:

Kohler Concierge



As a general rule, Kohler India does not collect any personal information unless you choose to provide such information. In order to provide Services effectively, we require certain types of information provided below:

Name, Email id, Contact Number, Billing/Shipping address

When you access the Services online, our web servers also automatically create records of your visit. These records typically include IP address access times, the sites linked from, pages visited, the links and features used, the content viewed or requested, browser or application type, language and other such information (Log Data). We use Log Data to provide our Services and to measure, customize, and improve them, as well as collect and use them in the aggregate.

Shopify provides merchants with a world-class content delivery network (CDN) run by Fastly and Cloudflare. Using a CDN means that your online store will load quickly around the globe, despite the Shopify servers being in North America.

Files delivered over the Shopify CDN are minified and compressed automatically using Brotli, Zopfli, and gzip, reducing the size of the files the browser must download. Requests use HTTP/3 and TLS 1.3 to further enhance request performance and security. Users/Visitors consent to the storage of data in such location.

We use the information we collect to carry out our contractual commitments towards the Users/Visitors. In addition, we process Personal Data to comply with legal obligations and to help you find the most relevant information for your situation by customizing our Services to optimize your experience and fulfil delivery of such Services. The personal information/data provided to us by you during the course of usage of www.kohler.co.in will be treated as strictly confidential and in accordance with the Privacy Notice and applicable laws and regulations. If you object to your information being transferred or used, please do not use the website.

Kohler Concierge



4. Access to www.kohler.co.in

We will do our utmost to ensure that the availability of the website will be uninterrupted and that transmissions will be error-free. However, due to the nature of the Internet, this cannot be guaranteed. Also, your access to the website may be occasionally suspended or restricted to allow for repairs, maintenance, or the introduction of new facilities or services at any time without prior notice. We will attempt to limit the frequency and duration of any such suspension or restriction

5. Communications

When you visit www.kohler.co.in , you are communicating with us electronically. We may communicate with you by e-mail, SMS, phone call or by posting notices on the website or by any other mode of communication. For contractual purposes, you consent to receive communications (including transactional, promotional and/or commercial messages), from us concerning your use of the website

6. Losses

We will not be responsible for any business loss (including loss of profits, revenue, contracts, anticipated savings, data, goodwill or wasted expenditure) or any other indirect or consequential loss that is not reasonably foreseeable to both you and us when you commenced using the website.

7. Provision of Services:

Kohler India intends to provide the Services across Pan India and currently only serves selected cities. Kohler India does not intend to provide Services or any part of the Services thereof through its website to any individual/ organisation outside the country of India. The products are provided "as is" and "as available" basis without any representation or warranties, express or implied except otherwise specified in writing.

Kohler Concierge



8. Alteration of Services or Amendments to the Conditions

We reserve the right to make changes to our website, policies, and these Terms and Conditions at any time. You will be subject to the policies and Conditions of Use in force at the time that you use the website or, unless any change to those policies or these conditions is required to be made by law or government authority (). If any of these conditions is deemed invalid, void, or for any reason unenforceable, that condition will be deemed severable and will not affect the validity and enforceability of any remaining condition.

10. Customer Care Service and Feedback:

Kohler India continuously strive to update and upgrade its services by taking into account the Users/Visitors feedback. We therefore provide assistance and guidance through its customer care representatives. When communicating with our customer care representatives (whether over the telephone, or via email or letter), you agree to not be abusive, obscene, profane, offensive, sexist, threatening, harassing, racially offensive, or to not otherwise behave inappropriately. Telephone calls between User/Visitor and our customer care representatives may be recorded for quality assurance purposes. By providing any contributions (feedback or message) on this www.kohler.co.in, you grant Kohler India and its affiliates and service providers, and each of their and Kohler's respective licensees, successors and assigns the right to use, reproduce, modify, perform, display, distribute and otherwise disclose to third parties any such content or information.

11. Reviews, comments, communications and other content

Users of this website may post reviews, comments and other content; send communications; and submit suggestions, ideas, comments, questions, or other information, as long as the content does / is not illegal, offensive (including but not limited to material that is sexually explicit content or which promotes racism, bigotry, hatred or physical harm), deceptive, misleading, abusive, indecent, invasive of privacy, including bodily privacy, insulting or harassing on the basis of



gender, blasphemous, defamatory, libellous, obscene, pornographic, pedophilic or menacing; racially or ethnically objectionable, or disparaging; in breach of copyright, trademark, patent, confidentiality, privacy or any other proprietary information or right; or otherwise injurious to third parties or relates to or promotes money laundering or gambling, or promotes enmity between different groups on the grounds of religion or caste with the intent to incite violence; or is harmful to minors in any way, or impersonates another person; or threatens the unity, integrity, defence, security or sovereignty of India or friendly relations with foreign States or public order or causes incitement to the commission of any cognisable offence or prevents investigation of any offence or is insulting other nation; or objectionable or otherwise unlawful in any manner whatsoever; or which consists of or contains software viruses or any other computer code, file or program designed to interrupt, destroy or limit the functionality of any computer resource, political campaigning, commercial solicitation, chain letters, mass mailings or any spam; or deceive or mislead the addressee about the origin of messages. In the event, a user fails to comply with the above. www.kohler.co.in reserves the right (but not the obligation) to remove, refuse, delete or edit any content that in the sole judgment of www.kohler.co.in violates these Conditions of Use and, or terminate your permission to access or use this website.

You represent and warrant that you own or otherwise control all of the rights to the content that you post or that you otherwise provide on or through the website; that, as at the date that the content or material is submitted to www.kohler.co.in : (i) the content and material is accurate; (ii) use of the content and material you supply does not breach any applicable www.kohler.co.in policies or guidelines and will not cause injury to any person or entity (including that the content or material is not defamatory); (iii) the content is lawful. You agree to indemnify Kohler India Corporation Private Limited, its parent entities and its affiliates for all claims brought by a third party against it or its affiliates arising out of or in connection with a breach of any of these warranties.



12. Code of Conduct:

Kohler Co. strictly requires the Users/Visitors to diligently follow the Code of Conduct including but not limited to the following:

1. The Services provided by Kohler shall not be used to infringe the privacy rights, property rights, or any other rights of any person.
2. The website will not be used to post messages, pictures or recordings or use the Service in any way which violates the privacy or other personal or proprietary rights, or is fraudulent or otherwise unlawful or violates the law;
3. The website will not be to distribute or upload any virus, Trojan horses, or do anything else that might cause harm.
4. The website will not be used to engage in any activity that constitutes or facilitates "spamming" or the sending of mass unsolicited messages.
5. The User/Visitor will not use any robot, spider, site search/retrieval application, or other manual or automatic device or process to retrieve, index, "data mine", or in any way reproduce or circumvent the navigational structure or presentation of the Service or its contents.
6. The User/Visitor will not use meta tags or code or other devices containing any reference to the Company or the Service (or any trademark, trade name, service mark, logo or slogan of the Company) to direct any person to any other website for any purpose.
7. The User/Visitor shall comply with all applicable laws (and shall not contravene any applicable law) of India relating to the Services, including any regulation made pursuant thereto.
8. The User/Visitor shall not violate, or attempt to violate the security of the Site and/or any web sites linked to the Company or gain unauthorized access any information regarded as private by other User(s) or persons, including but without limitation to accessing data and information not



intended for them or logging onto a server or account which the User is not authorized to access, attempting to probe, scan or test the vulnerability of a system or network or attempting to breach security or authentication

In the event that the User/Visitor breaches any of the above-mentioned covenants, the Kohler India shall have the absolute right to delete any material relating to the violations. Kohler India reserves the unilateral right to suspend or/and deactivate the User/Visitor's access to the Website in case of violation of terms of use. In addition to the right to indemnity available, Kohler India shall have the right to recourse to any legal remedy against the User/Visitor to recover the loss whatsoever in nature suffered by Kohler India due to such violation by the User/Visitor.

13. Limitation of Liability

Kohler India's liability, if any, towards a User/Visitor under this Agreement shall be limited to the amount payable by User/Visitor towards the Services acquired. Kohler India shall not be liable for any indirect, special or consequential costs or damages of whatever nature, including but not limited to, lost revenues or profits, downtime costs, loss or damage to data or other intangible losses, arising out of or in any way connected with the use of this Website, and/or the Services and/ or the Agreement or with the delay or inability to use this Website, or for any information, materials and/ or Products uploaded, posted, emailed, transmitted and/ or obtained through this Website, or otherwise arising out of the use of this Website, whether based on contract, tort, negligence, strict liability or otherwise. This provision does not limit either party's liability for: unauthorized use of intellectual property, nor any liability which may not be excluded or limited by applicable law.

14. Indemnity:

User/Visitor shall at all times fully indemnify and hold harmless Kohler India their officers, directors, agents and employees Kohler Concierge and costs, losses, claims, demands, damages and liabilities ,actions



including costs and reasonable attorneys' fees, made by any third party and/or penalty imposed, due to and/or arising out of User/Visitor's breach of the Terms & Conditions and/or User/Visitor's violation of any law, rules or regulations and/or the rights of a third party and/or the infringement by User/Visitor including, without limitation, copyright and trademark infringement, obscene and/or indecent postings, and on-line defamation, and/or any third party using the User/Visitor's account, of any intellectual property and/or other right of any person and/or entity.

15. Intellectual Property

a) Restrictions. All rights not expressly granted by Kohler India to the User/Visitor in these Terms are hereby reserved by Kohler India. There are no implied rights save to the extent rights cannot be excluded by applicable law. The User/Visitor are prohibited from using, imitating, or copying, in whole or in part, any Kohler India's trademark, service mark, trade dress, logo, or other branding (collectively, "Marks") without, in each instance, Kohler India's prior written consent. All permitted use of Kohler India's Marks will inure to the benefit of Kohler India.

b) Ownership. As between the parties, the Website and Services, including, without limitation, any and all APIs, Software, documentation, images, video, content, logos, page headers, custom graphics, design and user interface elements, scripts, and other materials contained therein or provided in connection therewith, and all modifications, enhancements, and updates thereto, as well as all IP Rights associated with any of these materials (collectively, "Kohler India IP") are owned by Kohler India and/or its third party sponsors, partners, and suppliers. User/Visitor have no right or license in or to the Kohler India IP other than the right to access the website, s, in compliance with the Terms.

16. Events beyond our reasonable control

We will not be held responsible for any delay or failure to perform our obligations under these conditions if the delay or failure arises

Kohler Concierge



from any cause which is beyond our reasonable control. This condition does not affect your statutory rights.

17. Waiver

If you breach these conditions and we take no action, we will still be entitled to use our rights and remedies in any other situation where you breach these conditions.

18. Data Security

We use a number of mechanisms (encryption, passwords, physical security) to protect the security and integrity of your personal information against unauthorized access and disclosure.

Unfortunately, no data transmission over the internet can be guaranteed to be completely secure. So, while we strive to protect such information, we cannot ensure or warrant the security of any information you transmit to us and you do so at your own risk. Once any personal information comes into our possession, we will take reasonable steps to protect that information from misuse and loss and from unauthorised access, modification or disclosure.

19. Governing Laws, Jurisdiction and Dispute Resolution:

This Agreement shall be governed by the laws of India. Any dispute between the Parties arising out of or relating to this Agreement, including with respect to the interpretation of any provision of this Agreement, shall be resolved by arbitration by a single arbitrator appointed by both the Parties mutually. The arbitration proceedings shall be in accordance with the Arbitration and Conciliation Act, 1996 or any enactments in substitution thereof. The venue of the arbitration proceedings shall be at Delhi. The award of the arbitrator shall be final and binding upon the Parties and non-appealable and the Parties agree to be bound by the same and the success of obligation of Kohler India. All legal transactions concluded between Kohler India and a User/Visitor shall be construed in accordance with the laws of India. You agree, as we do, to submit to the exclusive jurisdiction of the courts at Delhi.



20. REVIEW

This policy will be reviewed as and when required.

Kohler Concierge

